

Telangana Gaming Act, 1974

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[Telangana Gaming Act, 1974](#)

[\(Act](#)

[No. 27 of 1974](#)

[\)](#)

[Last Updated 5th December, 2019](#)

[1.](#)

[Short title, extent and commencement.](#)

[\(1\)](#)

[This Act may be called the \[Telangana Gaming Act, 1974\]](#)

[\[Substituted by G.O.Ms.No.45, Law \(F\) Department, dated 01.06.2016.\]](#)

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(2)

It extends to the whole of the [State of Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

(3)

It shall come into force on such date as the Government may, by notification in the [Telangana Gazette]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(1)

"common gaming house" , means-

(i)

in the case of gaming-

(a)

on a horse-race except in the manner provided in clause (2); or

(b)

on the market price of cotton, bullion or other commodity or on the digits of the number used for stating such price; or

(c)

on the ground of variation in the market price of any commodity specified in item (b) or on the digits of the number used for stating the amount of such variation; or

(d)

on the market price of stock or share or on the digits of the number used for stating such price ; or

(e)

on the number of registration or on the digits of the number of registration of any motor vehicle using a public place; or

(f)

on any transaction or scheme of wagering or betting in which the receipt or distribution of winnings or prizes, in money or otherwise, is made to depend on chance, any house, room, tent, enclosure, vehicle, vessel [cyber space]

[Inserted by Act No.29 of 2017.]

or any place whatsoever in which the gaming takes place or in which the horses or other instruments of gaming, are kept or used for such gaming;

(ii)

[in the case of any other form of gaming, any house, room, tent, enclosure, vehicle, vessel, cyber space or any place whatsoever in which any instruments of gaming are kept or used for the profit or gain of the person owning, occupying, using or keeping such house, room, tent, enclosure, vehicle, vessel, cyber space or any place, whether by way of charge for the use of such house, room, tent, enclosure, vehicle, vessel, cyber space or any place or instruments of gaming or otherwise howsoever;

[Substituted by Act No.29 of 2017.]

Explanation. - For the purpose of sub-clause (ii), any premises or place or cyber space belonging to or occupied by a club, society, company or other association of persons, whether incorporated or not, which is used or kept for purposes of gaming shall be deemed to be a common gaming house notwithstanding that there is no profit or gain for the club, society, company or other association of persons on account thereof;]

(2)

"gaming" means playing a game for winnings or prizes in money or otherwise and includes playing a game of mutka or satta [or online gaming for money or any other stakes]

[Inserted by Act No.29 of 2017.]

and lucky board and wagering or betting, except where such wagering or betting takes place upon a horserace-

(i)

on the day on which the horse-race is to be run ;

(ii)

in an enclosure which the stewards controlling the horse-race [or race meeting]

[Inserted by Act No.6 of 1975.]

have, with the sanction of the Government set apart for the purpose ; and

(iii)

(a)

with a licensed book maker ; or

(b)

by means of a totalisator ;

but does not include a lottery ;

Explanation. - For the purpose of this clause-

(i)

[Wagering or betting shall include,-

[Substituted by Act No.29 of 2017.]

(a)

collection or soliciting of bets;

(b)

the receipt or distribution of winnings or prizes in money or otherwise in respect of any wager or bet;

(c)

any act which is intended to aid, induce, solicit or facilitate wagering or betting or such collection, soliciting, receipt or distribution;

(d)

any act of risking money, or otherwise on the unknown result of an event including on a game of skill;

(e)

any action specified in sub-clause (a) to (d) carried out directly or indirectly by the players playing any game or by any third parties;]

(ii)

"totalisator" means a totalisator in an enclosure which the stewards controlling a race meeting have set apart in accordance with sub-clause (ii) and includes any instrument, machine or contrivance known as the totalisator or any other instrument, machine or contrivance of a like nature or any scheme for enabling any number of persons to make bets with one another on the like principles;

(iii)

["race meeting" means a meeting held for the purpose of horse racing at a race course within the State of [Telangana]

[Inserted by Act No.6 of 1975.]

and includes a meeting held at such race course for the purpose of betting on any horse race at any other race course outside the State.]

(3)

"Government" means the State Government;

(4)

[Instruments of gaming includes cards, dice, gaming tables, or clothes, boards or any other article used or intended to be used as a subject or means of gaming, any document, electronic form or record, digital form or record used or intended to be used as a register or record or evidence of any gaming, the proceeds of any gaming which includes online electronic transfer of funds or transactions and any winnings or prizes in money or otherwise, distributed or intended to be distributed in respect of any gaming.]

[Substituted by Act No.29 of 2017.]

3.

Penalty.

- [(1) Any person who opens, keeps, operates, or uses or permits to be used any common gaming house or online gaming or conducts or assists in conducting the business of any common gaming house or advances or furnishes money for gaming therein, shall be punishable-

(i)

for the first offence, with imprisonment for a term which may extend to one year and with fine which may extend to five

thousand rupees; but in the absence of special reasons to be recorded in writing, the punishment awarded under this clause shall be imprisonment for not less than three months and fine of not less than three thousand rupees;

(ii)

for every subsequent offence, with imprisonment for a term which may extend to two years and with fine which may extend to ten thousand rupees; but in the absence of special reasons to be recorded in writing the punishment awarded under this clause shall be-

(a)

for a second offence, imprisonment for not less than six months and fine of not less than five thousand rupees;

(b)

for a third or subsequent offence, imprisonment for not less than one year and fine of not less than ten thousand rupees.]

Explanation. - For the purpose of this section, the expression "person" includes the owner, or as the case may be, the occupier of the place used as a common gaming house and where such place belongs to or is occupied by a club, society or other association of persons, the person having the care or management of such place.

(2)

It shall not be necessary, in order to convict any person for opening, keeping or using or permitting the use of common gaming house or of being concerned with the care or management of a common gaming house, to prove that any person found therein was gaming for money, wager, bet or stake.

3A.

[Offences by companies.

[Inserted by Act No.29 of 2017.]

- Where a person committing a contravention of this section or any other provisions of this Act is a company, every person who, at the time of the contravention was committed, was incharge of, and was responsible to the company, for the conduct of the business of the company as well as the company, its managing directors and other directors, shall be deemed to be guilty of the contravention and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to punishment if he proves that the contravention took place without his knowledge of that he exercised all due diligence to prevent such contravention.]

[Substituted by Act No.29 of 2017.]

4.

[Penalty for being found gaming in a common gaming house.

[Substituted by Act No.29 of 2017.]

- Whoever is found gaming, or present for the purpose of gaming in a common gaming house shall, on conviction, be punishable with imprisonment for a term which may extend to six months or with fine which may extend to three thousand rupees, or with both.]

Explanation. - For the purpose of this section, any person found in any common gaming house during gaming therein shall be presumed to have been present there for the purpose of gaming.

5.

[Offences are cognizable and non-bailable.

[Substituted by Act No.29 of 2017.]

(1)

Every offence under this Act are cognizable and non-bailable.

(2)

Any Police Officer not below the rank of Sub- Inspector of Police has got authority

(i)

to enter any place and at any time with such force and with such assistance as may be found necessary;

(ii)

to arrest all persons found therein;

(iii)

to search all such persons and all parts of such place; and

(iv)

to seize-

- (a)
all moneys found with such persons;
- (b)
all investments of gaming; and
- (c)
all moneys, all securities for money and articles of value reasonably suspected to have been used or intended to be used for the purpose of gaming which are found in such place;
- (v)
to freeze bank accounts which are used for the purpose of gaming.]

6.
[Instruments of gaming found in a place entered or searched to be evidence that the place is common gaming house.
[Substituted by Act No.29 of 2017.]

- Where any instruments of gaming are found in any place entered or searched, on or about the person found therein, it shall be presumed that such place is used as a common gaming house and that the persons found therein were present there for the purpose of gaming although no gaming was actually seen by the police officer or any of his assistants.]

7.
[Provisions of sections 4 and 6 not to apply in certain cases.
[Substituted by Act No.29 of 2017.]

- Nothing in the Explanation to section 4, or in section 6 shall apply to persons found in a premises or place belonging to or occupied by a club, society, company or other association of persons, whether incorporated or not, unless such persons are actually found gaming or facilitating such gaming in any manner in such premises or place.]

8.
Instruments of gaming, etc., found in a common gaming house may be ordered to be destroyed or forfeited on conviction.

- On conviction of any person for opening, keeping or using or permitting the use of a common gaming house, or gaming therein or being present for the purpose of gaming, the convicting magistrate,-

(i)
may order all the instruments of gaming found therein or on or about the person found therein, to be forthwith destroyed or forfeited; and

(ii)
may order-

(a)
all or any of the securities for money and other articles seized, not being instruments of gaming, to be sold and the proceeds thereof with all moneys seized to be forfeited ; or

(b)
any part of such proceeds, and other moneys to be paid to any person appearing to be entitled thereto.

9.
[Penalty for gaming or setting birds or animals to fight in a public street or place.
[Substituted by Act No.29 of 2017.]

(1)
Whoever is found gaming or reasonably suspected to be gaming in any public street or thoroughfare or in any place to which the public have, or are permitted to have access, shall be punishable with imprisonment for a term which may extend to six months or with fine which may extend to five thousand rupees or with both.

(2)
Whoever is found setting any birds or animals to fight or is reasonably suspected to be aiding or abetting such fighting of birds or animals in any public street or thoroughfare or in any place to which the public have, or are permitted to have access, shall be punishable with imprisonment for a term which may extend to six months or with fine which may extend to five thousand rupees or with both.]

10.
Power to arrest without warrant for gaming or setting birds or animals to fight in public street or place and to seize moneys, instruments of gaming birds and animals.

(1)

Any police officer may arrest and search without warrant any person referred to in section 9.

(2)

Any such police officer may seize all moneys, all instruments of gaming and all things reasonably suspected to be instruments of gaming found in the public street, thoroughfare or place or found with the persons arrested by him and all birds or animals found with the persons arrested by him or are reasonably suspected to have been kept for being set to fight in the public street, thoroughfare or place.

11.

Presumptive proof of gaming.

- When any thing is seized under sub-section (2) of section 10, and if the magistrate is satisfied that the police officer who seized it has reasonable grounds for suspecting that the thing so seized was an instrument of gaming, it shall be presumed that such thing was an instrument of gaming and that the person on or about whom the thing was found was present in the public street, thoroughfare or place for the purpose of gaming.

12.

Instruments of gaming etc., found in public street or place may be ordered to be destroyed or forfeited on conviction.

- On conviction of any person under section 9, the convicting magistrate may order that-

(i)

all the instruments of gaming seized, shall forthwith be destroyed or forfeited;

(ii)

all birds or animals seized, shall be sold and the proceeds thereof with all the moneys seized shall be forfeited.

13.

Indemnification of persons concerned who are examined as witnesses.

- Any person who is concerned in gaming contrary to the provisions of this Act, and who is examined as a witness before a magistrate on the trial of any person for a breach of any of the provisions of this Act and who upon such examination, makes true and faithful discovery to the best of his knowledge of all things as to which he is so examined, shall thereupon receive from the said magistrate a certificate in writing to that effect and shall be freed from any prosecution under this Act for any thing previously done in respect of that particular gaming.

14.

Payments of portion of fine to informants.

(1)

The convicting magistrate may direct any portion, not exceeding one half, of any fine which is imposed under section 3, section 4 or section 9 and of the moneys or the proceeds of articles seized and ordered to be forfeited under section 8 or section 12 to be paid to such informants as may have assisted in the detection of the offenders.

(2)

A direction under sub-section (1) may also be made by any court of appeal, reference or revision.

(3)

Where a direction is made under sub-section (1) or sub-section (2) the magistrate or court concerned shall send the amount to be paid under sub-section (1) or sub-section (2), as the case may be in the area within the jurisdiction of the Commissioner of Police, Hyderabad to the said Commissioner and elsewhere to the Superintendent of Police, who shall distribute it among such of the informants aforesaid as may be chosen by him in such proportion as he thinks fit.

(4)

The amount to be paid as aforesaid shall not be sent to the Commissioner of Police or the Superintendent of Police until the expiration of three months from the date of the direction under sub-section (1) or if an appeal, reference or revision is made within the period, until the same is disposed of.

15.

[Power to remove difficulties.

[Substituted by Act No.29 of 2017.]

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Government may, by order in the Telangana Gazette, make such provisions not inconsistent with the provisions of this Act as may appear to it to be necessary or expedient for removing such difficulty: Provided that no order shall be made under this section after the expiry of two

years from the date of commencement of the Telangana Gaming (Amendment) Act, 2017.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before each House of the State Legislature.]

15A.

[Over riding effect.

[Inserted by Act No.29 of 2017.]

- The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force.]

16.

Power to make rules.

(1)

The Government may, by notification in the [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

Gazette make rules for carrying out all or any of the purposes of this Act.

(2)

Every rule made under this section shall immediately after it is made, be laid before each House of the State Legislature if it is in session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions and if, before the expiration of the session in which it is so laid or the session immediately following both Houses agree in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified have effect only in such modified form or shall stand annuled, as the case may be ; so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

17.

Repeals and Savings.

- The Andhra Pradesh (Andhra Area) Gaming Act, 1930, (Act III of 1930.) and the Andhra Pradesh (Telangana Area) Gambling Act, 1305 F. (Act II of 1305 F.) are hereby repealed:

Provided that such repeal shall not affect of the previous operation of the said Acts and subject thereto, anything done or any action taken in the exercise of any powers conferred by or under the Acts so repealed shall be deemed to have been done or taken in the exercise of the powers conferred by or under this Act as if this Act were in force on the date on which such thing was done or action was taken.

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